b. Forty-eight (48) months from date of appointment to commissioned grade if;

(1) I fail to meet the requirements for assignment to flight training; or

(2) I am separated from the flight training by reason of flight failure or physical disqualification (contingent upon approval from CMC).

(3) In addition to the forty-eight (48) month MSO, if I fail to meet the requirements for assignment to flight training as a result of my own request or by reason of academic failure, I agree to serve an additional extension of active service equal to the time spent in flight training (contingent upon approval from CMC).

c. United States Code, Title 10, Chapter 39, Sections 671a and 671b currently provide as follows:

(1) 671a. Members: service extension during war. Unless terminated at an earlier date by the Secretary concerned, the period of active service of any member of an armed force is extended for the duration of any war in which the United States may be engaged and for six months thereafter.

(2) 671b. Members: service extension when Congress is not in session.

(a) Notwithstanding any other provision of law, when the President determines that the national interest so requires, he may, if Congress is not in session, having adjourned sine die, authorize the Secretary of Defense to extend for not more than six months enlistment, appointments, periods of active duty, periods of active duty for training, periods of obligated service, or other military status, in any component of the armed forces, that expire before the thirtieth day after Congress next convenes or reconvenes.

(b) An extension under this section continues until the sixtieth day after Congress next convenes or reconvenes or until the expiration of the period of extension specified by the Secretary of Defense, whichever occurs earlier, unless sooner terminated by law or Executive order.

d. Federal statutes and pertinent regulations applicable to personnel in the USMC may change without notice. Such changes may affect my status as an officer candidate or commissioned officer and obligations to serve as such.

3. I certify that I have not previously failed any military aviation training program nor have I been designated as an aviator in any of the Armed Forces of the United States.

4. I certify that I have read and completely understand the meaning and content of the above. No promises, either written or oral, have been made to me in connection with my application for enrollment in the **MARINE OPTION NROTC SNA** program except as specified above. I acknowledge receipt of a copy of this document.

Signature of Witnessing Officer	*Signature of Applicant*
Full Name and Grade of Witness	*Full Name of Applicant*
	Date

SERVICE AGREEMENT - MARINE ENLISTED COMMISSIONING EDUCATION PROGRAM STUDENT NAVAL AVIATOR

ANNEX C